BOARD OF DIRECTORS
SCHOOL DISTRICT NO. 1J, MULTNOMAH COUNTY, OREGON

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REGULAR BUSINESS MEETING

January 10, 2005

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OFFICE OF THE BOARD OF DIRECTORS
SCHOOL DISTRICT NO. 1J, MULTNOMAH COUNTY, OREGON
BLANCHARD EDUCATION SERVICE CENTER
PORTLAND, OREGON

JANUARY 10, 2005

The regular business meeting of the Board of Directors came to order at 6:35 p.m. on the above date at the call of Chairperson Brim-Edwards. There were present:

Julia Brim-Edwards
Derry A. Jackson, Sr.
Doug Morgan -- absent
Lolenzo Poe
Bobbie Regan
Dilafruz Williams
David Wynde

Suleima Cortez, Student Representative

Vicki L. Phillips, Superintendent
Jollee Patterson, General Counsel/Board Secretary
Julie Joel, Executive Assistant

Personnel

The Superintendent RECOMMENDED adoption of the following numbered items:

Numbers 3178 through 3180

Directors Wynde and Jackson moved adoption of the above-numbered items. The motion was put to a voice vote and passed unanimously (vote: 6-yes; 0-no); Director Morgan absent from voting.

Ratifying Appointments and Notice of Nonrenewals

3178 RESOLVED, That the Board of Education of School District No. 1J, Multnomah County, Oregon approves, ratifies, and adopts the action of the Superintendent designating the following individuals as temporary teachers at the salary schedule rates shown below; and be it further

RESOLVED, That the Board does not intend to renew the contract of the following individuals after the termination date stated below because the assignments are temporary, and, therefore, the Board does not require the services of the individuals after the completion of the temporary assignments.

Name and Comments	*Department*	*Grade or Subject*	*Fund Location*	*Salary Schedule*	*Effective Date*	*Term. Date*
Cardenas, Carlos	Marshall	Spanish	205 320	L01 808 14 0.40 FTE	10/11/04	06/16/05
Carver, Daniel	Wilson	Biology/Science	107 126	L01 801 03 0.80 FTE	10/11/04	12/17/04
Cohen, Suzanne	Whitaker	Special Ed	101 414	L01 805 03 1.0 FTE	11/18/04	06/16/05
Gast, Nancy	Fernwood	Media Specialist	101 249	L01 808 14 0.45 FTE	10/06/04	01/31/05
Haatia, Lynn	Grant	Advanced Math	101 217	L01 805 03 1.0 FTE	11/15/04	01/31/05
Meyer, Carol	Wilcox	Speech Path	205 430	L01 808 14 0.30 FTE	11/22/04	01/31/05
Palmerton, Faye	Whitaker	Community Liaison	205 288	L01 801 14 0.48 FTE	11/15/04	06/16/05
Pastoor, Lori	BESC	Speech Path	101 414	L01 808 03 1.0 FTE	11/18/04	06/16/05
Quimby, Morgan	Franklin	Alt Health	101 215	L01 802 03 0.29 FTE	11/19/04	01/31/05
Thompson, Renee	Whitaker	Psychologist	101 417	L01 808 03 1.0 FTE	12/01/04	06/16/05
Vohnson, Pamela	BESC	Psychologist	101 414	L01 808 03 0.80 FTE	12/01/04	06/16/05
Whitehead, Glen	Franklin	PE/Health	101 215	L01 801 04 0.14 FTE	12/06/04	06/16/05

(S. Goldschmidt)

Leaves of Absence

3179 RESOLVED, That the following leaves of absence be granted:

Name	*School*	*Effective*	*Reason*
Bennett, Jennifer	Beaumont	01/3/05 to 01/31/05	Child Care
Brown, Jennifer	Markham	01/3/05 to 06/16/05	Personal
Fields, Billy	Grout	12/9/04 to 12/17/04	Child Care
Kennedy, Renee (.50 FTE Leave of Absence)	Lincoln	01/31/05 to 06/16/05	Child Care
Lebsack, Cathy	Wilson	12/16/04 to 01/31/05	Restoration of Health/Illness
Levay, Traci	Youngson	01/03/05 to 02/27/05	Restoration of Health/Illness
Shore, Alla	Beach	11/13/04 to 01/02/05	Child Care
Torelle, Barbara Zane	Metropolitan Learning Center	11/23/04 to 01/31/05	Restoration of Health/Illness
Van Engelen, Krista	Ball	11/3/04 to 01/30/05	Restoration of Health/Illness

(S. Goldschmidt)

Administrator-Teacher Resignations

3180 RESOLVED, That the following resignations be accepted:

Name	*School/Program*	*Effective*	*Reason*
Berkham, Charlotte	Rose City Park	12/30/04	Retirement
Chinakos, Maria	Rigler	01/01/05	Retirement
Nottage, Sage	Youngson/Foster	11/27/04	Another Position
Petrina, Colleen	Columbia	12/16/04	Health Reasons
Sinclair, Gayle	Grout	10/31/04	Health Reasons

(S. Goldschmidt)

Purchases, Bids, Contracts

The Superintendent RECOMMENDED adoption of the following items:

Numbers 3181 through 3183

Directors Wynde and Jackson moved adoption of the above-numbered items. The motion was put to a voice vote and passed unanimously (vote: 6-yes; 0-no); Director Morgan absent from voting; Student Representative voting yes, unofficial.

Contract Services
Public Communications Printing
for the Celebrate! Portland Public Schools Event

3181 WHEREAS, In accordance with PPS Contracting and Procurement Rules, competitive offers shall be solicited from qualified businesses, and after an evaluation of the offers, contract award shall be made to the highest ranked firm; therefore be it

RESOLVED, That the Deputy Clerk be authorized to execute a contract approved by the Board of Education and General Counsel for printing, mailing and distribution and mailing services. Contract shall include set deliverables for the school catalog, posters, school brochures and programs for the Celebrate! Portland Public Schools in an amount not to exceed $100,000. *(B. Gustafson)*

Public Contracts
Board Authorization of Superintendent to Obligate the District
Submitted for School Board Approval

3182 WHEREAS, Pursuant to Board Policy 8.90.010 Contracts, School Board approval is required to enter into and approve payment for products, materials, supplies, capital outlay, equipment and services where the total amount reaches $25,000 or more per contractor; and

WHEREAS, That such contracts are listed below and have reached or exceeded $25,000 per contractor; therefore be it

RESOLVED, That the Superintendent recommends that these contracts be approved and authorization granted to enter into agreements in a form approved by Counsel for the District:

Contractor	*Term of Service*	*Type of Contract*	*Description of Services*	*Fund/ Dept. ID. #*	*Amount*	*Vendor Total*	*Resp. Admin.*
Vickers/Nelson & Associates, Inc.	12/9/03 through 1/31/05	Personal/ Professional Services Contract - Contract # 2233 Amendment #3	Additional Project Management and Construction Management services to complete & close out the Meek Remodel project	Fund 101 Dept 5594 & 5552	$19,068.00	$118,459.00	Pamela Brown
Anderson Roofing Co, Inc.	6/19/04 through 2/28/05	Modified A107 Construction Contract - Contract # C-53097 – Chg Order #4	Additional roof repair services at Wilson High School & Extend service period	Fund 403 Dept 5591	$5,000.00	$238,491.00	Pamela Brown
Evergreen Pacific, Inc.	1/10/05 through 6/30/05	Construction Services Contract	Franklin High School ADA Ramps	Fund 402 Dept 5591	$38,500.00	$229,097.00	Pamela Brown

Change Order Approval
Marshall, Jefferson & Roosevelt Remodels

3183 WHEREAS, The Board of Education for School District No. 1J, Multnomah County, Oregon has designated itself as the Local Public Contract Review Board in accordance with ORS 279.055; and

WHEREAS, The Board of Education previously approved a construction contract with Jaeger and Erwert for the reconfiguration of the Marshall, Jefferson and Roosevelt high school campuses, with a current contract value of $233,637.00; and

WHEREAS, Based on the program needs at the Roosevelt campus, it has been determined that the project needs to be expanded; and

WHEREAS, Although the proposed change order amount of $21,000.00 is above the allowable amount for construction contracts, soliciting additional bids for this work is neither practical nor feasible. Allowing the current contractor to complete the work will keep the project on schedule, and the Procurement Director believes it will result in cost savings and will not harm competition; now therefore be it

RESOLVED, That the Deputy Clerk is authorized to execute a change order in the amount listed for the additional work, which is hereby exempted from additional competitive bidding. The work shall be performed under the direction of Facilities and Asset Management (5591). *(P. Brown / D. Matthews*)

Expenditures

The Superintendent RECOMMENDED adoption of the following item:

Number 3184

Directors Wynde and Jackson moved adoption of the above-numbered item. The motion was put to a voice vote and passed unanimously (vote: 6-yes; 0-no); Director Morgan absent from voting; Student Representative voting yes, unofficial.

Payment for Professional Services
Legal Services

3184 RESOLVED, That authority be granted to pay the following professional service providers:

Payee	*Description*	*Date*	*Amount*	*Fund*
Miller, Nash, Wiener, Hager & Carlsen	Legal Services, General Matters	Services through 11/30/2004	$34,577.24	Fund 101 Org. #5528
Miller, Nash, Wiener, Hager & Carlsen	Legal Services, Labor Litigation	Services through 11/30/2004	$3,948.04	Fund 101 Org. #5528

(J. Patterson)

Other Matters Requiring Board Action

The Superintendent RECOMMENDED adoption of the following items:

Numbers 3185 through 3189

Directors Wynde and Jackson moved adoption of the above-numbered items, with the exceptions of Board Actions 3187 and 3188 which were voted on during the Committee of the Whole. The motion was put to a voice vote and passed unanimously (vote: 6-yes; 0-no); Director Morgan absent from voting; Student Representative voting yes, unofficial.

During the Committee of the Whole, Director Poe moved adoption of Board Action 3187. It was put to a roll call vote and passed unanimously (vote: 6-yes; 0-no); Director Morgan absent from voting; Student Representative voting yes, unofficial.

During the Committee of the Whole, Director Williams moved adoption of Board Action 3188. It was put to a voice vote and passed unanimously (vote: 6-yes; 0-no); Director Morgan absent from voting; Student Representative voting yes, unofficial.

Expenditure Contracts that Exceed $25,000 Limit for Delegation of Authority

3185 WHEREAS, Pursuant to Board Policy 8.90.010 Contracts, School Board approval is required to enter into and approve payment for products, materials, supplies, capital outlay, equipment and services where the total amount reaches $25,000 or more per contractor; and

WHEREAS, That such contracts are listed below and have reached or exceeded $25,000 per contractor; therefore be it

RESOLVED, That the Superintendent recommends that these contracts be approved and authorization granted to the Deputy Clerk to enter into agreements in a form approved by Counsel for the District:

Contractor	*Term of Service*	*Type of* Contract	*Description of Services*	*Fund/ Dept. ID. #*	*Amount*	*Vendor Total*	*Resp. Admin.*
J & D Refrigeration Services	11-01-04 Through 10-31-05	General Services Contract Contract # GS 53310	Refrigeration and Freezer Storage for Nutrition Services	Fund 202 Dept 5570	$37,000	$37,000	K Obbink
Multnomah Education Service District	12-15-04 Through 06-30-05	Personal / Professional Services Contract Contract # PS 53377	MESD nurse(s) will conduct student interviews as part of middle schools' implementation of the STARS for Families Program curriculum.	Fund 205 Dept 5424 Grant G0421	$6,000	$795,109	M Kilcrease
Oregon Arena Corp	11-01-04 Through 04-12-05	Lease Agreement Contract # LA 53349	PPS Teachers Job Fair 2005 for the purpose of recruiting educators	Fund 101 Dept 5441	$2,950	$167,100	K Schwartzrock
Maizels Abbott Design Collaborative	11-08-04 Through 03-31-05	Personal / Professional Services Contract Contract # PS 53377	Feasibility study toward moving IT data center and selected staff to PSU as part of the PSU Partnership Project.	Fund 101 Dept 5581	$5,000	$112,500	S Robinson

Contractor	*Term of Service*	*Type of* Contract	*Description of Services*	*Fund/ Dept. ID. #*	*Amount*	*Vendor Total*	*Resp. Admin.*
Expeditionary Learning Outward Bound	10-01-04 Through 01-30-05	Personal / Professional Services Contract Contract # PS 53379	To pursue an exploratory agreement to determine the feasibility of implementing Expeditionary Learning at Bridger ES.	Fund 205 Dept 5485 Grant G0427	$15,000	$120,000	J Fischer
AVID Center	07-01-04 Through 06-30-05	Personal / Professional Services Contract Contract # PS 53385	AVID Planning Implementation Agreement for membership, materials, and training	Fund 101 Dept 5485	$26,335	$26,335	C Edwards
Oregon Health Science University	09-14-04 Through 06-30-05	Intergovern-mental Agreement Contract # IGA 53374	An OHSU Fellow will work with teachers, staff, and students as part of the Special Education department, Behavior Support Team.	Fund 101 Dept 5414	$9,880	$134,080	M Kilcrease
Open Meadow	07-01-04 Through 06-30-05	Personal / Professional Services Contract Contract # PS 53394	Title I funding to private schools for staff professional development, student supplies, upgraded computer software	Fund 205 Dept 6928 Grant 0580	$42,875	$82,250	C Leonard
Northwest Service Academy	10-06-04 Through 08-23-05	Personal / Professional Services Contract Contract # PS 53384	Americorp position at Grant High School	Fund 107 Dept 5421 Fund 205 Dept 5444 Grant 0547 Fund 101 Dept 3217	$6,000	$74,200	P Pickles
University of Oregon	10-01-04 Through 08-31-05	Grant Contract Amend #3 Contract # G 50976	Increase of $49,650 for year 4 of the Grant for Project Excel	Fund 205 Dept 5493 Grant G0355	$49,650	$158,624	M Kilcrease

Contractor	*Term of Service*	*Type of* Contract	*Description of Services*	*Fund/ Dept. ID. #*	*Amount*	*Vendor Total*	*Resp. Admin.*
Northwest Service Academy	01-13-05 Through 12-02-05	Personal / Professional Services Contract Contract # PS 53282	Americorps Service Agreement	To be paid by Sellwood MS PTA	$6,000	$26,000	J Bryant
Portland State University	11-09-04 Through 11-09-05	Intergovern-mental Agreement Contract # IGA 53328	Contractor shall provide teen father support services and training to the District	Fund 299 Dept 4306 Grant S0117	$16,000	$80,000	C Edwards
Multnomah Education Service District	12-20-04 Through 02-11-05	Intergovern-mental Agreement Contract # IGA 53328	Contractor will employ raters trained in using State of Oregon scoring guides to score writing samples and math work samples from PPS high school students.	Fund 101 Dept 5405	$24,000	$9,462,095	E Brzezinski
The Education Trust	06-29-04 Through 06-30-05	Personal / Professional Services Contract Amend #1 Contract # PS 53282	Extend contract date to 06-30-05 to accommodate rescheduling of workshops.	Fund 205 Dept 5405 Grant G0512 Fund 101 Dept 5424	$15,000	$34,600	M Kilcrease
Bob Lawrence Consulting	01-10-05 Through 02-11-05	Personal / Professional Services Contract Contract # PS 53397	Transitional Planning for Internal and External Strategic Communications	Fund 101 Dept 5406	$10,000	$34,000	V Phillips
CLS Communications	01-15-05 Through 03-15-05	Purchase Order	Portable radios for Security Services	Fund 101 Dept 5530	$125,000	$125,000	F Klejmont
Step Forward Activities	01-01-05 Through 01-04-06	Requirements Contract	Compatible printer cartridges	Fund 101 Dept 5552	$75,000	$75,000	D Matthews

Contractor	*Term of Service*	*Type of* Contract	*Description of Services*	*Fund/ Dept. ID. #*	*Amount*	*Vendor Total*	*Resp. Admin.*
Campus EAI	01-01-05 Through 12-31-05	Personal / Professional Services Contract Amend #1 Contract # PS 52552	Renewal of annual maintenance and support for Oracle portals software	Fund 101 Dept 5581	$35,000	$64,750	S Robinson

Revenue Contracts that Exceed $25,000 Limit for Delegation of Authority

3186 WHEREAS, Pursuant to Board Policy 8.90.010 Contracts, School Board approval is required to enter into and approve revenue where the total amount reaches $25,000 or more per contractor; and

WHEREAS, That such contracts are listed below and have reached or exceeded $25,000 per contractor; therefore be it

RESOLVED, That the Superintendent recommends that these contracts be approved and authorization granted to the Deputy Clerk to enter into agreements in a form approved by Counsel for the District:

Contractor	*Term of Service*	*Description of Services*	*Fund/Grant/ Dept. ID. #*	*Amount*	*Resp. Admin.*
Gresham-Barlow School District	09/03/04 through 06/30/05	Classroom services for Deaf/Hard for Hearing Students.	S0031	$183,440	M. Kilcrease
Lake Oswego School District	09/03/04 through 06/30/05	Columbia Regional Program will provide Deaf/Hard of Hearing classroom services to regionally eligible students residing in Lake Oswego SD	Fund 299 Dept 5422 Grant S0031	$20,000	M. Kilcrease

Election of Board Chairperson

3187 RESOLVED, That David Wynde is hereby elected Chairperson of the Board for the period January 10, 2005 until the first regular meeting of the Board in July, 2005, and until, respectively his/or her successor is elected.

Election of Board Vice-Chairperson

3188 RESOLVED, That Bobbie Regan is hereby elected Vice-Chairperson of the Board for the period January 10, 2005 until the first regular meeting of the Board in July, 2005, and until, respectively his/or her successor is elected.

Amendment to Cafeteria Plan

3189 WHEREAS, The District established the Portland Public Schools Cafeteria Plan ("Plan") effective May 1, 1994; and

WHEREAS, The District intends that this Plan continue to satisfy the requirements of Section 125 of the Internal Revenue Code of 1986, as amended; and

WHEREAS, The District desires to amend the Plan in certain respects; therefore be it

RESOLVED, that the Portland Public Schools Cafeteria Plan is amended effective January 1, 2005, or as of such earlier or later dates as specified in amendments prepared by Miller Nash on behalf of the District; and be it further

RESOLVED, that the Deputy Clerk is authorized to execute such amendments and keep them on file in the Deputy Clerk's Office.

(H. Franklin)

Reports, Notices, Statements

The Superintendent SUBMITED the following items and RECOMMENDED they be filed for future reference:

Contracts and Agreements
Delegated by Board Authority

Finance Services reports the following contracts and agreements:

Contracts in Range: $2,000 - $4,999

Contractor	*Description*	*Contract No.*	*Contract Completion*	*Amount*
Lewis & Clark College	Survival Spanish for Educators	PS53293	12/09/04	$2,535
Soliday, Lynn	Workers' Comp. Assessment	2639	11/22/04	2,700
Portland Schools Alliance	Increase Parent Involvement	PS53237	12/14/04	3,000
Ardell, Beth	Math School Based Training	PS53346	06/30/05	3,000
Providence St. Vincent Medical Center	Use of aquatic center	PS53326	04/15/05	3,675
VanLoo, Scott	Plan Equity Workshops	PS53336	03/31/05	4,500
Total of Contracts in Range:	**$2,000 - $4,999**			**$19,410**

Contracts in Range: $5,000 - $9,999

Contractor	*Description*	*Contract No.*	*Contract Completion*	*Amount*
McPhee, Marnie	Develop Template Language	PS53363	06/30/05	5,000
Reach Associates, LLC	Educational Spec/New Columbia	PS53348	06/30/05	5,000
Galiatsos, Stacy	Review Grants Office	PS53324	01/31/05	6,000
Cornerstone Construction Management, Inc.	Balcony Emergency Egress Project	PS53255	12/31/05	6,500
LGA Architecture	Design Services/Franklin ADA Ramp	PS53287	06/30/05	6,700
W.B. Wells and Assoc., Inc.	Washington HS Property Sale	PS53330	06/30/05	7,850
Multnomah Education Service District	Bus Assistant Services	PS53325	06/30/05	8,686
Total of Contracts in Range:	**$5,000 - $9,999**			**$45,736**

Contracts in Range: $10,000 - $14,999

Contractor	*Description*	*Contract No.*	*Contract Completion*	*Amount*
Ngo, Kim	Play Environ/Sacajawea	CS53296	01/31/05	11,452
Northwest Service Academy Education	Americorp	IGA53215	08/23/05	12,000
Ngo, Kim	Play Environment/Creston	C53295	01/31/05	13,024
Antoinette Edwards Consulting	Improve Communication	PS53270	12/17/04	13,250
Total of Contracts in Range:	**$10,000 - $14,999**			**$49,996**

JULIA BRIM-EDWARDS
CHAIRPERSON, BOARD OF DIRECTORS

LYNN WARD
DEPUTY CLERK